

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #08	CCRB Case #: 201411924	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 09/27/2014 8:24 PM	Location of Incident: Castleton Avenue and Caroline Street	18 Mo. SOL 3/27/2016	Precinct: 120
Date/Time CV Reported Tue, 11/18/2014 1:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/25/2014 1:35 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Dalbero	28746	948843	120 PCT
2. POM Tyler Kalman	26488	932840	120 PCT
3. SGT Thomas Reed	02623	924657	120 PCT
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Elves Pinho	11848	942364	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Tyler Kalman	Force: PO Tyler Kalman used physical force against § 87(2)(b)	A . Exonerated
B . POM Michael Dalbero	Force: PO Michael D'Albero used physical force against § 87(2)(b)	B . Exonerated
C . SGT Thomas Reed	Force: Sgt. Thomas Reed used a Taser against § 87(2)(b)	C . Exonerated
D . SGT Thomas Reed	Force: Sgt. Thomas Reed used physical force against § 87(2)(b)	D . Exonerated
E . An officer	Force: An officer used a chokehold against § 87(2)(b)	E . Officer(s) Unidentified

Case Summary

On September 27, 2014, at approximately 8:00 p.m., Sgt. Thomas Reed, PO Michael D’Albero, and PO Tyler Kalman observed § 87(2)(b) driving his dirt bike recklessly in the vicinity of Clove Road and Cary Avenue in Staten Island. When § 87(2)(b) stopped his dirt bike at the corner of Castleton Avenue and Caroline Street, PO D’Albero and PO Kalman exited their RMP and approached him. PO D’Albero and PO Kalman grabbed § 87(2)(b)’s arms, swung him toward the RMP, and attempted to trip him to the ground. (Allegations A and B) § 87(2)(b) was then pushed against the wall of a construction site. § 87(2)(g) § 87(2)(b) believed that either PO D’Albero or PO Kalman attempted to punch him but missed and struck another officer.

§ 87(2)(b) alleged that he was tasered following the arrival of backup officers. He believed that an officer, identified by the investigation as Sgt. Reed, fired the Taser and missed before ultimately using the Taser against § 87(2)(b) in dry-stun mode. (Allegation C) Either PO D’Albero or PO Kalman allegedly slammed § 87(2)(b) to the ground and he lost consciousness. § 87(2)(g) § 87(2)(b) Sgt. Reed acknowledged that he aided in taking § 87(2)(b) to the ground following the use of his Taser. (Allegation D)

At an unspecified time during the struggle, an unknown officer allegedly used a chokehold against § 87(2)(b) by wrapping his arm around the front of § 87(2)(b)’s neck, and § 87(2)(b) said, “§ 87(2)(b) choking me. I can’t breathe.” (Allegation E)

Mediation, Civil, and Criminal Histories

On March 6, 2015, a NOC inquiry was filed with the Office of the New York City Comptroller. Its results will be added to the case file upon receipt. [encl. H5-H6]

This complaint was ineligible for mediation due to § 87(2)(b)’s arrest.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) [encl. B4]

Sgt. Reed has been a member of the service for 15 years. He has had two other CCRB complaints with no substantiated allegations against him. [encl. B2]

PO D’Albero has been a member of the service for 4 years and has had one previous CCRB complaint with no substantiated allegations against him. [encl. B3]

PO Kalman has been a member of the service for 11 years and has had one previous CCRB case with no substantiated allegations against him. [encl. B1]

Investigative Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) testified that only two officers were at the scene initially. He described PO1 as a uniformed white male who looked like a “ginny”, was less than 30 years old, with a stocky build, lightly colored eyes, and short, dirty blond hair. PO1 also appeared to be of a physical size large

enough to harm § 87(2)(b) PO2 was a uniformed white male in his mid-30s who was chubby, bald, “looked like a pig,” stood 5’9” or taller and was driving the police vehicle. PO3 arrived later along with PO4. PO3 was a white male, and he tasered § 87(2)(b) in his back. § 87(2)(b) was unable to describe PO4.

PO Kalman is a § 87(2)(b) -old white male with brown hair and brown eyes, § 87(2)(b). PO D’Albero is a § 87(2)(b) -old white male with brown hair and brown eyes, § 87(2)(b). Sgt. Reed is a § 87(2)(b) -old white male who § 87(2)(b) has green eyes, and is bald. Sgt. Reed was operating the police vehicle.

Sgt. Reed, PO D’Albero, and PO Kalman unanimously agreed that they all arrived at the scene in the same vehicle. They also agreed that PO Kalman and PO D’Albero physically engaged with § 87(2)(b) first while Sgt. Reed stepped around the RMP moments later. Sgt. Reed tasered § 87(2)(b) after he resisted PO Kalman’s and PO D’Albero’s efforts to place him under arrest. The officers all testified that Sgt. Reed assisted PO Kalman and PO D’Albero in their physical efforts to subdue § 87(2)(b) after the Taser was deemed ineffective.

§ 87(2)(b) provided his statement to the CCRB over three months after the incident date, § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation A) Force: PO Michael D’Albero used physical force against § 87(2)(b)

Allegation B) Force: PO Tyler Kalman used physical force against § 87(2)(b)

Allegation C) Force: Sgt. Thomas Reed used a Taser against § 87(2)(b)

Allegation D) Force: Sgt. Thomas Reed used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) testified that either PO D’Albero or PO Kalman approached him, and he told the officers that he was not resisting and would take a ticket. PO D’Albero or PO Kalman grabbed § 87(2)(b) s wrist in a way that made him believe that he was trying to break his hand. PO D’Albero or PO Kalman swung § 87(2)(b) toward their RMP before pushing him onto the sidewalk and ultimately against the wall of a construction site. PO D’Albero or PO Kalman, assisted by Sgt. Reed, grabbed § 87(2)(b) s arms and attempted to trip him. § 87(2)(b) did not want the officers to throw him and land on top of him so he extended his arms and faced his palms out while going limp and attempting to lower himself to the ground. § 87(2)(b) believed that PO D’Albero or PO Kalman attempted to punch him but missed and accidentally struck another officer. According to § 87(2)(b)

it was at this time that he grabbed and ripped Sgt. Reed's pants to avoid being thrown to the ground.

§ 87(2)(b) stated that he was tasered twice during the incident, and the Taser was ultimately used against him in dry-stun mode. Although § 87(2)(b) stated that he was "flopping like a fish" from the Taser's effects, he denied falling to the ground as a result. § 87(2)(b) was slammed to the ground by either PO D'Albero or PO Kalman and lost consciousness. He did not remember if the slam occurred before or after he was tasered. § 87(2)(b) regained consciousness and was transported to what he believed was § 87(2)(b). He claimed to have suffered a laceration to his lip, cuts and bruises on his knees, neurological damage to his wrists, and a dislocated shoulder in addition to the Taser prongs in his back. [encl. C7-C14]

§ 87(2)(b)'s arrest photo revealed an abrasion to his right cheek but did not show any evidence of a laceration to his lip. [encl. C12]

§ 87(2)(a) PHL § 18(6)

According to PO Kalman, § 87(2)(b) was initially compliant, had his hands in the air, and allowed PO Kalman and PO D'Albero to place their hands on his arms for a few seconds. He denied that § 87(2)(b) said anything during their approach. PO Kalman and PO D'Albero moved § 87(2)(b) toward their RMP in order to control the space, but § 87(2)(b) never made contact with the RMP. § 87(2)(b) then started to swing his arms and walk away from PO Kalman and PO D'Albero.

The struggle continued as § 87(2)(b) refused to be handcuffed. PO Kalman described the struggle as being "all over the place", and he did not know if § 87(2)(b)'s back ever struck a wall. According to PO Kalman, neither he nor PO D'Albero attempted to take § 87(2)(b) to the ground, and no officer attempted to punch him. Thirty seconds passed before Sgt. Reed walked to where the officers were struggling with § 87(2)(b) and fired his Taser. The prongs struck § 87(2)(b) in his back, but the Taser was ineffective. § 87(2)(b) walked away stating, "I'm getting tased right now." The Taser was fired only once, and PO Kalman never saw the prongs miss § 87(2)(b). The Taser was not used in dry-stun mode.

PO Kalman stated that he and PO D'Albero each grabbed one of § 87(2)(b)'s arms after the current stopped flowing from the Taser. Sgt. Reed assisted one of them as they attempted to pull § 87(2)(b)'s arms behind his back. PO Kalman radioed for assistance after he realized that the Taser was ineffective and he and his partners would not be able to subdue § 87(2)(b). According to PO Kalman, § 87(2)(b) broke free from the officers and punched PO D'Albero in the face. PO D'Albero did not attempt to strike § 87(2)(b) in retaliation. Backup officers arrived less than one minute later, and § 87(2)(b)

§ 87(2)(b) was taken to the ground. According to PO Kalman, § 87(2)(b) was not picked up or slammed to the ground at any time, and § 87(2)(b) never lost consciousness.

§ 87(2)(b) PO Kalman, PO D’Albero, and Sgt. Reed all went to § 87(2)(b). PO Kalman stated that he suffered a § 87(2)(b). According to PO Kalman, Sgt. Reed injured his lower back and hip, and PO D’Albero was later treated for an unspecified injury to his face. PO Kalman also indicated that Sgt. Reed’s pants were ripped during the incident. PO Kalman later learned that § 87(2)(b) initially refused to have the Taser prongs from his back and had to be taken to § 87(2)(b) a second time to have them removed. [encl. D1-D6]

§ 87(2)(g) According to PO D’Albero, either he or PO Kalman informed § 87(2)(b) that he was going to be arrested as they approached him. § 87(2)(b) then walked to their RMP, voluntarily placed his hands on the hood, and asked why he was being placed under arrest. PO D’Albero confirmed that § 87(2)(b) punched him near his right eye, and he provided a photo of the injury during his interview. [encl. D7-D14]

§ 87(2)(g) According to Sgt. Reed, he watched PO Kalman and PO D’Albero struggle with § 87(2)(b) for one to two minutes before ordering them to step back because he intended to use his Taser. He confirmed that the Taser was ineffective but denied firing it more than once or using it in dry-stun mode. According to Sgt. Reed, § 87(2)(b) was placed inside of a “silent room” at § 87(2)(b).

§ 87(2)(b) This room is reserved for patients who are disorderly or irrational. § 87(2)(b)

§ 87(2)(g) Sgt. Reed also generated a Less Lethal/Rescue Equipment Use Report, § 87(2)(g)

Patrol Guide procedure 203-11 states that an officer must use the minimum force necessary to effect an arrest. [encl. A1-A2] Patrol Guide procedure 212-117 states that a conducted energy device should only be used against a person who is actively physically resisting, exhibiting active physical aggression, or to prevent individuals from physically injuring themselves or others. [encl. A3-A10]

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C, and D** be closed as **exonerated**.

Allegation E) Force: An officer used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that an officer used a chokehold against him, but he could not remember the point at which this occurred. An officer allegedly wrapped his arm around the front of § 87(2)(b)'s neck and secured the hold by grabbing his opposite bicep. This caused § 87(2)(b) to say, "You're choking me. I can't breathe." [encl. C7-C14]

PO D'Albero, PO Kalman, and Sgt. Reed all denied having used a chokehold against § 87(2)(b) and none of them saw a chokehold used against § 87(2)(b) at any time. [encl. D1-D32]

§ 87(2)(g)

it is recommended that **Allegation E** be closed as **officer unidentified**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date